

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA**

CHRISTOPHER HANSON, individually and
as attorney for himself and attorney/next friend
for his minor children [8 years old] and [6 years old],

Plaintiff,

v.

Case No.: 2025-CA-10255

THIRTEENTH JUDICIAL CIRCUIT
COURT, CLERK OF THE COURT
FOR THE THIRTEENTH JUDICIAL
CIRCUIT, GINA JUSTICE (AND/OR
CURRENT COURT ADMINISTRATOR),
CHIEF JUDGE CHRISTOPHER C.
SABELLA, JUDGE KELLY AYERS,
JUDGE MATTHEW FELIX, MIKE MOORE,

Defendants.

_____ /

**RESPONSE IN OPPOSITION TO AMENDED PETITION FOR WRIT OF MANDAMUS
AND INCORPORATED MEMORANDUM OF LAW**

Defendants, THIRTEENTH JUDICIAL CIRCUIT COURT, TRIAL COURT
ADMINISTRATOR GINA JUSTICE, CHIEF JUDGE CHRISTOPHER C. SABELLA, JUDGE
KELLY AYERS, and JUDGE MATTHEW FELIX, (hereinafter “Defendants”), by and through
undersigned Counsel and pursuant to Fla. R. Civ. P. 1.630 and 1.140 and Florida Statutes Chapter
119, file this their Response in Opposition to Petitioner’s Amended Petition/Complaint for Writ of
Mandamus and in support thereof state the following:

1. On November 13, 2025, Plaintiff filed the Amended Petition/Complaint for Writ of
Mandamus, seeking disclosure of judicial records as they pertain to a divorce and custody
proceeding 24-DR-1150, in compliance with Florida Statute 119.

2. In Support of his Petition, Plaintiff filed Exhibits on October 15, 2025, to support his initial complaint filed on October 14, 2025. Plaintiff's Amended Petition cites the exhibits filed. These exhibits include his public record requests, Plaintiff's subsequent communication with Court Administrative Staff, and correspondence with Chief Judge Sabella.
3. On December 19, 2025, Plaintiff served the Thirteenth Judicial Circuit Court, the Trial Court Administrator, Chief Judge Christopher C. Sabella, Judge Kelly Ayers, and Judge Matthew Felix with the Amended Petition/Complaint.

MEMORANDUM OF LAW

While Plaintiff has filed a Writ of Mandamus seeking additional Declaratory Relief and Attorney's Fees. This Court has jurisdiction to issue writs of mandamus pursuant to Art. V, § 5(b) Fla. Const. A Writ of Mandamus is an extraordinary remedy, whereby issuance is appropriate only when necessary to vindicate the rights of citizens when a government agency or official has refused to perform a ministerial duty. *Perry v. Dep't of Children & Families*, 220 So.3d 546, 549 (Fla. 3d DCA 2017). In order to establish entitlement to a writ of mandamus, the petitioner must demonstrate a clear right to the requested relief, which the respondent must have an indisputable legal duty to perform and petitioner must have no other adequately available remedy. *Huffman v. State*, 813 S0.2d 10, 11 (Fla. 2000).

When a trial court receives a petition for a writ of mandamus, the court must initially assess facial sufficiency of the petition. *Davis v. State*, 861 So.2d 1214, 1215 (Fla. 2d DCA 2003). If the petition is deemed facially sufficient, the court must direct the respondent to show cause why the writ should not be issued. *Moore v. Ake*, 693 So.2d 697, 698 (Fla. 2d DCA 1997). Petitioner must establish a clear legal right to require performance of the duty. *Fla. League of Cities v. Smith*, 607

So. 2d 397, 400-401 (Fla. 1992); *State, ex. Rel. Cortez v. Bentley*, 457 So. 2d 1072 (Fla. 2d DCA 1984).

A duty or act is “ministerial,” for purposes of mandamus relief, when there is no room for exercise of discretion and performance being required is directed by law. *Town of Manalapan v. Rechler*, 674 So. 2d 789, 790 (Fla. 4th DCA 1996). The procedure for consideration of a writ of mandamus in the trial court is as outlined by the Second District Court of Appeal:

“A party petitioning for a writ of mandamus must establish a clear legal right to performance of the act requested, an indisputable legal duty, and no adequate remedy at law. When a trial court receives a petition for a writ of mandamus, its initial task is assessing the petition to determine whether it is facially sufficient. If it is not facially sufficient, the court may dismiss the petition. If the petition is facially sufficient, the court must issue an alternative writ of mandamus requiring the respondent to show cause why the writ should not be issued. If the petition and answer to the alternative writ raise disputed factual issues, the trial court must resolve these issues upon evidence submitted by the parties. If undisputed affidavits are submitted to the trial court, the court may be able to resolve the issues based on those affidavits.”

Radford v. Brock, 914 So. 2d 1066, 1067–68 (Fla. 2d DCA 2005)

A. Factual Background

Petitioner seeks an Order of Mandamus requiring Respondents to disclose the documents and records concerning Judicial disqualification and recusal records and associated documents and communications; Administrative and all other communications regarding the GAL issue including Judge Ayers’ request for a summary and Husband’s objection to excusing Attorney Davis from drafting the summary; Transcripts and filings referenced in public proceedings; Email and text communications of Judge Kelly Ayers and Wendy DePaul and their judicial assistants related to this case including those related to scheduling, objections, and disqualification/recusal; and visual and audio recordings of specified hearings, primarily the April 4, 2025 hearing, offered by Judge Ayers as part of a lie/threat made on the formal transcript, in compliance with Florida Statute 119.

Plaintiff claims that the requests were partially provided but redacted or acknowledged their existence and failed to provide the records. Plaintiff claims that the redactions and communication are evidence of the Defendants' intent to subvert the truth and conceal evidence of judicial misconduct.

B. Exemption to Florida Public Records Act

Florida Statute § 119.07(1)(a) provides that a “person who has custody of a public record shall permit the record to be inspected and copied by any person desiring to do so, at any reasonable time, under reasonable conditions and under supervision of the custodian of records.” The custodian is required to promptly acknowledge such requests and to respond in good faith. *See* §119.07(1)(c) Fla. Stat. A “good faith response includes making reasonable efforts to determine from other officers or employees within the agency whether such a record exists and, if so, the location at which the record can be accessed.” *Id.* Upon payment of a fee prescribed by law, the custodian is required to furnish a copy of the requested record. *See* §119.07(4) Fla. Stat.

Should the custodian of records determine that a portion of the requested record is exempt from inspection and disclosure, the custodian must provide the grounds for the exemption and include the statutory cite for the exemption. *See* §119.07(1)(e) Fla. Stat.

Judicial immunity “embraces persons who exercise a judicial or quasi-judicial function; and the immunity rests on the sound public policy that a strict guarantee of immunity is necessary to preserve the effectiveness and impartiality of judicial and quasi-judicial offices.” *Office of State Attorney, Fourth Judicial Circuit of Florida v. Parrotino*, 628 So. 2d 1097, 1098 (Fla. 1993).

“Judges enjoy absolute immunity for acts performed in the course of their judicial capacities unless they clearly act without jurisdiction.” *Johnson v. Harris*, 645 So. 2d 96, 98 (Fla. 5th DCA 1994). The rationale for judicial immunity includes the important public policies of

protecting the finality of judgments, discouraging inappropriate collateral attacks, and preserving judicial independence by insulating judges from lawsuits by unsatisfied litigants. *Forrester v. White*, 484 U.S. 219, 225 (1988).; *see also Kalmanson v. Lockett*, 848 So. 2d 374 (Fla. 5th DCA 2003); *Berry v. State*, 400 So. 2d 80 (Fla. 4th DCA 1981).

Consequently, when a judge acts in a nonjudicial capacity or acts in the “clear absence of jurisdiction” the doctrine of judicial immunity will not apply. *Jones v. State*, 302 So. 3d 414, 415 (Fla. 2d Dist. App. 2019) (quoting *Kalmanson v. Lockett*, 848 So. 2d 374, 378 (Fla. 5th Dist. App. 2003)). In determining whether the action taken was a judicial act, the court considers whether the action was a normal judicial function, whether the event occurred in the courtroom or judge’s chambers, whether it centered around a case pending before the judge, and whether the judge was acting in his judicial capacity at the time. *Kalmanson v. Lockett*, 848 So. 2d 374, 378 (Fla. 5th Dist. App. 2003); *Mireles v. Waco*, 502 U.S. 9, 12 (1991).

If any actions on a case were done at judicial direction they can be considered nonmechanical functions integral to the judicial process that are entitled to absolute immunity. *Fong v. Forman*, 105 So. 3d 650, 653. *See also Richman v. Sheahan*, 270 F.3d 430, 437 (7th Cir.2001) (noting that “for court personnel and adjuncts who do not exercise a discretionary function comparable to a judge’s, the justification for extending absolute immunity is most compelling when the lawsuit challenges conduct specifically directed by the judge....”).

Plaintiff complains that the records were not provided, however the Plaintiff has provided records of the public record requests, but it is not clear if they are complete records of communication. The exhibit shows the need for payment to obtain the records, but no proof of Plaintiff providing payment. Plaintiff provided pages of emails that were provided, but no redactions were shown. Plaintiff complains of redactions without specificity, but the redactions

appear to be within the communication record of Judges. With respect to the Court's mental impressions which may, or may not have been expressed in the records, they are protected by judicial immunity, their personal impressions are protected and not subject to disclosure. See *DHSMV v. Marks*, 898 So.2d 1063 (Fla. 5th DCA 2005), citing *Johnson v. Harris*, 645 So.2d 96, 98 (Fla. 5th DC A 1994). Petitioner has provided the Court with no authority permitting disclosure or overcoming the exemption from disclosure provided herein. Additionally, there are some items that were not released as they were confidential and not subject to disclosure. The reasoning was provided to Plaintiff and Plaintiff had additional opportunities to obtain the records, which Plaintiff has not completed. As such, Plaintiff's Writ should be denied.

C. Petitioner's request is futile.

The traditional mandamus action requires the petitioner to establish a clear legal right to performance of the act requested, an indisputable legal duty by the public officer to perform the act, and no adequate remedy at law. See *Hatten v. State*, 561 So. 2d 562, 563 (Fla. 1990); *Holcomb v. Department of Corrections*, 609 So. 2d 751, 753 (Fla. 1st DCA 1992); *Turner v. Singletary*, 623 So. 2d 537, 538 (Fla. 1st DCA 1993) ("To show entitlement to a writ of mandamus, the petitioner must demonstrate a clear legal right to the performance of the act requested, an indisputable legal duty on the part of the respondent, and that no other adequate remedy exists").

The duty of the respondent in a mandamus action must be ministerial in nature, and not discretionary. *Caruso v. Baumle*, 776 So. 2d 371, 372 (Fla. 5th DCA 2001). A duty is ministerial when "there is no room for the exercise of discretion, and the performance being required is directed by law." *Town of Manalapan v. Rechler*, 674 So.2d 789, 790 (Fla. 4th DCA 1996). Mandamus is available only to enforce an established legal right, not to establish a right. *Miami-*

Dade Cty. Bd. of Cnty. Comm'rs v. An Accountable Miami-Dade, 208 So.3d 724 (Fla. 3d DCA 2016).

Additionally, “Mandamus will not lie to compel the performance of an act that is futile or impossible to perform.” *Miami-Dade Cnty. Democratic Party v. Miami-Dade Cnty. Canvassing Bd.*, 773 So. 2d 1179, 1180 (Fla. 3d DCA 2000) (citing *Agency for Health Care Admin. v. Mt. Sinai Med. Ctr. of Greater Miami*, 690 So.2d 689 (Fla. 1st DCA 1997)). “It is well-established fundamental principle of the law of mandamus that the writ will never be granted in cases when, if issued, it would prove unavailing, or when compliance with it would be nugatory in its effects or would be without beneficial results and fruitless to the relator.” *State ex rel. Ostroff v. Pearson*, 61 So. 2d 325, 326 (Fla. 1952)

As Plaintiff has requested mandamus for items that are not available, there is no order that could materialize records that do not exist or no longer exist. Plaintiff requested video, but from his own exhibits, it appears he only made one preservation request to ensure that the security footage was preserved from one hearing. Defendants cannot provide items that are not available, thus mandamus is inappropriate.

D. Petitioner has failed to establish a legal right to the requested materials.

The traditional mandamus action requires the petitioner to establish a clear legal right to performance of the act requested, an indisputable legal duty by the public officer to perform the act, and no adequate remedy at law. *Hatten v. State*, 561 So. 2d 562, 563 (Fla. 1990); *Holcomb v. Department of Corrections*, 609 So. 2d 751, 753 (Fla. 1st DCA 1992); *Turner v. Singletary*, 623 So. 2d 537, 538 (Fla. 1st DCA 1993) (“To show entitlement to a writ of mandamus, the petitioner must demonstrate a clear legal right to the performance of the act requested, an indisputable legal

duty on the part of the respondent, and that no other adequate remedy exists”). If the requested act does not meet all of these requirements, then mandamus relief is inappropriate.

Here, Plaintiff has failed to demonstrate a clear legal right to the requested items as he has made broad requests for multiple documents. The Plaintiff’s exhibits demonstrate that the requests have been processed and that payment needs to be made to obtain the records. There are some documents that were not subject to disclosure and Plaintiff’s exhibits explained why they were withheld and what needed to occur for the records to be released. Additionally, Plaintiff has been provided with the invoice, Plaintiff needed to follow the procedure however there is no exhibit showing that Plaintiff has paid for the requested records. As he has failed to complete the requisite payment as directed in F.S. 119, Plaintiff has failed to demonstrate the Defendants have an indisputable legal duty to perform the act. Plaintiff has other remedies available, but failed to exercise those remedies, as he has not provided the requisite payment to receive the records. As Plaintiff has not met his burden, his request for mandamus relief is inappropriate.

E. Plaintiff is not entitled to a declaratory judgment and failed to state a cause of action for declaratory relief.

While Plaintiff filed a Writ of Mandamus, he has requested declaratory relief. A motion to dismiss a complaint seeking declaratory relief is not a motion on the merits. Instead, it is a motion to determine if a plaintiff is entitled to a declaration in his favor. *Romo v. Amedex Ins. Co.*, 930 So. 2d 643, 648 (Fla. 3d DCA 2006). A trial court has great deference when dismissing a complaint seeking a declaratory judgment. *Abruzzo v. Haller*, 603 So. 2d 1338, 1339 (Fla. 1st DCA 1992). When considering dismissal of a request for declaratory judgment, the court should focus on whether the plaintiff is entitled to a declaration of rights, rather than whether he will succeed in obtaining the declaration sought. *“X” Corp. v. “Y” Person*, 622 So. 2d 1098 (Fla. 2d DCA 1993).

“Dismissal of a declaratory judgment action, on a defendant's motion to dismiss, is proper where it is made to appear that the complaint or petition does not present a matter for which determination by declaratory judgment is provided for in Chapter 86, or where for some other reason the resort to declaratory judgment is legally inappropriate.” *Hildebrandt v. Dep't of Nat. Res., Div. of Interior Res.*, 313 So. 2d 73, 74 (Fla. 3d DCA 1975).

To obtain a declaratory judgment, a controversy must exist. In *May v. Holley*, the Florida Supreme Court enumerated the elements for a declaratory action as follows:

[I]t should be clearly made to appear that there is a bona fide, actual, present practical need for the declaration; that the declaration should deal with a present, ascertained or ascertainable state of facts or present controversy as to a state of facts; that some immunity, power, privilege or right of the complaining party is dependent upon the facts or the law applicable to the facts; that there is some person or persons who have, or reasonably may have an actual, present, adverse and antagonistic interest in the subject matter, either in fact or law; that the antagonistic and adverse interests are all before the court by proper process or class representation and that the relief sought is not merely the giving of legal advice by the courts or the answer to questions propounded from curiosity.

May v. Holley, 59 So.2d 636, 639 (Fla. 1952). A declaratory judgement action requires a pending controversy and is not intended to provide opinions on controversies that are moot. *Santa Rosa County v. Administration Commission, Division of Administrative Hearings*, 661 So. 2d 1190 (Fla. 1995). Once a dispute is settled, the circuit court lacks jurisdiction to grant declaratory relief as to the constitutionality of statutes or rules. *Id.*

Plaintiff has failed to comply with the procedures to provide the records requested. Plaintiff requests a declaration but does not provide the information as to whether or not payment was completed on the records that are allegedly being withheld. Plaintiff does not identify an actual and present controversy aside from Plaintiff's complaints about the public records procedure

within the Thirteenth Judicial Circuit. Plaintiff's request for declaratory relief lacks controversy and should therefore be dismissed.

CONCLUSION

WHEREFORE, Defendants, Thirteenth Judicial Circuit Court, Trial Court Administrator Gina Justice, Chief Judge Christopher C. Sabella, Judge Kelly Ayers, and Judge Matthew Felix respectfully requests this Honorable Court deny the Petition for Mandamus and award any such other relief as this Honorable Court deems appropriate under the circumstances.

Respectfully Submitted,

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CONFERRAL STATEMENT

I certify that conferral prior to filing is not required under rule 1.202.

CERTIFICATE OF SERVICE

I hereby certify that on January 8, 2026, I electronically filed the foregoing with the Clerk of Court by using the Florida Courts eFiling Portal.

/s/ Jessica Schwieterman
Jessica Schwieterman
Senior Assistant Attorney General